

EXHIBIT P

RT 8 excerpts

Case No.: CGC-21-594102

Superior Court of California, County of San Francisco

CITATION EXHIBIT ORIGIN:

Source: RT Day 8

1 may cross-examine him, but you are not permitted to
2 examine him or question him about settlement offers in
3 this matter.

4 MR. ROSARIO: Yes, absolutely. I stipulate,
5 whatever that is called, absolutely.

6 One more thing. Officer Orenco has videos,
7 body cam videos.

8 If we were to use that as well as the 911
9 call to -- and we are going to impeach Mr. Abdelhalim
10 based upon his statements -- the appropriate manner
11 that you feel that would do that, because there is a
12 video involved -- we brought our own screen, so that
13 way we can share that. It is the same video everyone
14 has, the Defense has it.

15 So the certification has been provided from
16 Mr. Sobati to make sure that those things were sent
17 and that the Dolan Law firm has provided those as
18 well.

19 THE COURT: This is how you should do this,
20 all right?

21 Again, I can't tell you how to run your case.

22 It seems most -- one of the ways is not the
23 most expedient, but one way of handling this is to
24 simply ask Mr. Abdelhalim the questions that you want
25 to ask him.

26 He may agree with you or he may disagree with
27 you.

28 If you want to use the video recording, you

1 can offer that into evidence rather than trying to
2 examine him piecemeal by way of the video.

3 Again, I can't tell you how to do this, but
4 if you choose, you may then use whatever his answers
5 are and tell the jury in closing argument to them what
6 differences of opinion you have with respect to
7 Mr. Abdelhalim.

8 Because having you argue with the witness in
9 front of the jury is simply going to be unworkable for
10 you, that you have acknowledged your courtroom
11 experience is limited, and it may be this is the
12 easiest way of you handling this, simply asking him
13 the questions, and then after he is sat down, after he
14 has been examined by Defense Counsel and then you have
15 an opportunity to redirect, just like everything else,
16 then you can put the video recording on, assuming that
17 there are no other objections, and play it in front of
18 the jury.

19 Then, rather than having an argument with
20 Mr. Abdelhalim about what was said or not said or
21 trying to prove it to have him concede something on
22 the witness stand -- that only happens in the
23 movies -- so then you come back in closing argument
24 and you point out the differences that took place with
25 his examination and what has been shown by the video
26 recording.

27 MR. ROSARIO: Understood. I don't want to
28 make it any more than just a couple questions. They

1 are going to be elegantly placed --

2 THE COURT: It is your call, sir. I just
3 want to try to put this case in as simply as you can
4 to make your presentation and be comprehensive;
5 however, sometimes, trying to be comprehensive may
6 become an issue because there may be too much detail,
7 and the process that I am anticipating may prevent you
8 from making your case. All right.

9 Is there anything else?

10 MS. NAVARATNASINGHAM: Yes, Your Honor. May
11 I address two things?

12 One, with reference to the instruction that
13 Your Honor just mentioned, that he is going to read to
14 the jury about settlement at the scene, the claim is
15 so outlandish and so untrue that I fear that if the
16 Court addresses that, it is going to give it some
17 credence to the jury.

18 I am perfectly happy putting Mr. Abdelhalim,
19 when I question him on the stand, and asking him: Did
20 you offer him money at the scene?

21 And he will say: No.

22 I am concerned, Your Honor, if we address
23 that this morning, it will give credence to that
24 allegation.

25 So I would maybe ask we refrain from doing
26 that because it is ridiculous.

27 THE COURT: Okay.

28 MR. ROSARIO: That is my testimony. So it

1 didn't know.

2 I mean, like, hey, let's go harvest some
3 organs today.

4 I don't know what is going on. All I know is
5 I am suddenly hit from behind, I am on the ground and
6 there is a guy who has been -- and just sitting there.
7 It was almost like -- from my opinion, guys, it was
8 like -- it was almost like a predator watching me die,
9 like some kind of like -- it was disgusting to me. I
10 couldn't believe I was being treated like this by
11 another San Franciscan. All right?

12 I couldn't believe it. I was astounded that
13 somebody could hit me like this and just leave me
14 there and watch me and sit from his van and come over
15 and do the things -- the avoidance, the attempt to
16 avoid was so profound. It just -- it was visceral to
17 me.

18 And when he got on the phone with 911, I was
19 adamant to send a message to my children in case I
20 died right there on that sidewalk, because they needed
21 to know what happened to me.

22 It was an injustice of what happened. And I
23 needed to make sure my kids, my family, my employees,
24 my friends, my sisters, my mother -- who did that to
25 me.

26 That was the only thing I could do. I could
27 hardly say anything. It was the best I could do to
28 get a breath in my chest.

1 And my father, he died from small-cell lung
2 cancer because of agent orange and his service in
3 Vietnam. And I remember him having a hard time
4 breathing. He sacrificed his life for the
5 constitution --

6 THE COURT: Mr. Rosario, come back to the
7 incident.

8 THE WITNESS: He told me about how it felt.

9 THE COURT: That is not relevant. Please,
10 sir.

11 THE WITNESS: Yeah?

12 THE COURT: That is not relevant. You are
13 getting sidetracked.

14 You need to focus on the issues that are a
15 part of this phase of the case. All right? Focus on
16 that, please. Come back to that.

17 THE WITNESS: So about 2:55 -- I am looking
18 at the 911 record -- he called 911 and told them that
19 he hit me with his truck and I yelled: He hit me with
20 his van.

21 And he said: Well, it was barely anything,
22 to the 911 operator. And it was a lot. It was not
23 barely anything. It was a fatal wound, or what you
24 call a mortal wound, it can kill you. I believe that
25 is what they call it.

26 A life-threatening wound may be more
27 specifically what we would say today, the colloquial,
28 those things are ancient.

1 MR. ROSARIO: For the sake of Your Honor, do
2 any of the jury need to hear it a second time to
3 clarify the audio that was spoken?

4 THE COURT: I don't believe so. Ask your
5 next question, sir.

6 MR. ROSARIO: Q. Mr. Abdelhalim, before we
7 listened to this audio clip, you stated that you did
8 not make a 911 call, is that correct? Or you did make
9 a 911 call, but then also stated that you never hit me
10 with your vehicle?

11 You know, there was no contact with me with
12 your vehicle.

13 THE COURT: Which question do you wish to put
14 in? One question at a time.

15 MR. ROSARIO: Q. Mr. Abdelhalim, was that
16 you on that phone call?

17 A. Yes.

18 Q. When you called in to the 911 operator, the
19 caller, you, Mr. Abdelhalim, said that you were
20 driving your van and there was a guy in front of you
21 and that you barely hit him with anything but you are
22 calling for him.

23 That was just played for you in the audio
24 track. Are you still denying that that was you?

25 A. That is not correct.

26 Q. What is not correct, the audio?

27 MS. NAVARATNASINGHAM: Objection, vague and
28 ambiguous. I am not sure what the question is.

1 Q. Okay. Mr. Abdelhalim, are you -- do you
2 typically lie, Mr. Abdelhalim?

3 MS. NAVARATNASINGHAM: Objection,
4 argumentative.

5 THE COURT: Sustained.

6 MR. ROSARIO: Q. Mr. Abdelhalim, were you
7 lying when you made the statement on the phone?

8 MS. NAVARATNASINGHAM: Objection,
9 argumentative.

10 THE COURT: Sustained.

11 MR. ROSARIO: Q. Mr. Abdelhalim, were you
12 being honest on the phone call?

13 MS. NAVARATNASINGHAM: The same objection.

14 THE COURT: Sustained.

15 MR. ROSARIO: Q. Mr. Abdelhalim, you made a
16 statement to us that you did not strike me, and on the
17 audio that we just played for you, about halfway down
18 the first page, it says: After the victim yelling at
19 me he hit me with his van.

20 Will you please look at the text there?

21 THE COURT: This is not evidence. It is the
22 recording you can rely on.

23 MR. ROSARIO: Q. Yeah. I am going to talk
24 about the recording. You clearly did on the audio,
25 and said: He was turning to the right and he was boom
26 in front of me, I just hit him, hit him with barely
27 anything.

28 Was that your voice also?

1 A. That is my voice.

2 Q. Okay, Mr. Abdelhalim. And then later on, the
3 911 operator asked you something.

4 And then you said you were turning to the
5 left side; is that correct?

6 You said first you were turning to the right
7 side, and then you said you were turning to the left
8 side. And it is clearly in the audio.

9 Do you remember which direction you were
10 turning?

11 A. I do remember. It was the right side --
12 would be on the right side.

13 Q. Okay. And then the operator asked you: I am
14 sorry. Then she goes: Okay, and "I am sorry" during
15 the audio.

16 And then she asked you: Can you talk
17 directly in the phone what happened?

18 And then I spoke.

19 And then you said: I'm calling 911 for him.

20 I asked you earlier, before we played the
21 audio clip, if you had called 911 for me, and you
22 said: No.

23 Was this your voice again when you stated
24 that: I am calling 911 for him?

25 The question is: Was that your voice in the
26 audio that said: I am calling the 911 for him? Yes
27 or no. That was your voice?

28 A. Yes.

1 Q. Okay. And then it says: The operator then
2 asked to get a clarification for you -- from him and
3 she slowed down very clearly. And I can play that
4 portion again for you if you need to hear it.

5 Would you like to hear that portion where she
6 slowed down and asked a clear question?

7 THE COURT: Sir, we don't play anything again
8 unless he says he doesn't remember. So ask him a
9 question about what was on the recording.

10 MR. ROSARIO: I don't see him saying that he
11 doesn't remember.

12 THE COURT: I am saying to you: You do not
13 get the opportunity to replay the recording unless he
14 doesn't remember something that you are asking him
15 about.

16 MR. ROSARIO: Q. Oh, okay. The operator
17 asked you: Okay, so you were in your van. You were
18 driving and he was on the street. You hit a
19 pedestrian. And you started to say "no", and then you
20 said "yeah."

21 So you clarified, that was in the audio.

22 A. I don't remember.

23 MR. ROSARIO: Now what do we do? Do we play
24 it back again from the audio in case he doesn't
25 remember?

26 THE COURT: Yes. You can play it back.
27 (Whereupon, an audio tape was played).

28 MR. ROSARIO: Q. Okay. All right. So we

1 setting up.

2 So tell me: What time do you expect to be
3 complete?

4 MR. ROSARIO: 9:45, sir.

5 THE COURT: What time will you arrive?

6 MR. ROSARIO: I will be here at 9:00 a.m.,
7 sir.

8 THE COURT: Very well.

9 Members of the jury, we are going to adjourn
10 for the weekend.

11 We will have you here at 9:45 Monday morning
12 a.m.

13 Remember not to form or express any opinions
14 about this case to anyone. Thank you. You can just
15 leave your notebooks there. Nobody is going to be
16 coming into the jury box tomorrow.

17 Thank you. Have a good weekend.

18 (Whereupon, the jury was excused from the
19 courtroom).

20 THE COURT: Thank you. Very well.

21 Is there anything else we need to do?

22 How much more of a case do you have to
23 present on this phase?

24 MR. ROSARIO: Mr. Abdelhalim changed his
25 story between the 911 --

26 THE COURT: Sir, I asked the question. How
27 much more time do you require to present your phase
28 one testimony or evidence?

1 My recollection is there may be some aspects
2 of the verdict form that has been proposed which
3 invoke some specific question.

4 So it may be -- it is not a general verdict,
5 but it is the other form of verdict, special verdict
6 form, that you may need to consider drafting of that
7 form.

8 But I really don't want to have a
9 circumstance where we are contesting the nature of the
10 verdict form immediately before we present it to the
11 jury.

12 MR. ROSARIO: Did you want to do final
13 statements on Tuesday?

14 THE COURT: Yes, if we can do it, we will
15 have oral arguments.

16 MR. ROSARIO: On causation and liability?

17 THE COURT: Yes, sir. Yes, sir.

18 MS. NAVARATNASINGHAM: And, Your Honor, you
19 mentioned that, and that was a good point.

20 We may have to modify the jury instructions
21 as well just because of the bifurcation.

22 So I will work on the Defense's draft or
23 Mr. Rosario and their consideration.

24 THE COURT: See if you can, to the best of
25 your ability, meet and confer.

26 You have a few days to review things.

27 Try to cooperate with each other with respect
28 to the presentation of these materials to the Court.